

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
EL PASO DIVISION

RONNIE MARTINEZ,

Plaintiff,

v.

JUAN CARLOS CHACON CHAVEZ,
NATHAN TIERNEY, and
GROUNDBREAKERS, LLC,

Defendants.

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EP-23-CV-00138-DCG

PLAINTIFF'S AMENDED COMPLAINT

TO THE HONORABLE JUDGE OF SAID COURT:

Plaintiff, Ronnie Martinez, files this Plaintiff's Amended Complaint complaining of Defendants Juan Carlos Chacon Chavez, Nathan Tierney, and Groundbreakers, LLC.

I.
PARTIES

1. **Plaintiff.** Ronnie Martinez ("Plaintiff") is a natural person and at all times relevant to this cause of action has been and continues to be a resident of El Paso, El Paso County, Texas.

2. **Defendant.** Juan Carlos Chacon Chavez ("Chacon Chavez") is a natural person and at all times relevant to this cause has been and continues to be a resident of Las Cruces, Doña Ana County, New Mexico. Defendant Chacon Chavez has appeared in this cause.

3. **Defendant.** Nathan Tierney ("Tierney") is a natural person and at all times relevant to this cause has been and continues to be a resident of Las Cruces, Doña Ana County, New Mexico. Defendant Tierney has appeared in this cause.

4. **Defendant.** Groundbreakers, LLC (“Groundbreakers”) is a foreign, limited liability company doing business in the State of Texas. Defendant Groundbreakers actively conducts business in Texas and New Mexico. Defendant Groundbreakers has appeared in this cause.

II.

JURISDICTION & VENUE

5. This Court has jurisdiction over this case pursuant to diversity jurisdiction prescribed by 28 U.S.C. §1332, because the matter in controversy exceeds the sum or value of \$75,000, exclusive of interest and costs, and is between citizens of different states or countries.

6. Venue is proper in United States District Court for the Western District of Texas, El Paso Division, because all or a substantial part of the events or omissions giving rise to the claim occurred in this district.

III.

FACTS

7. On August 02, 2022, Plaintiff was driving a 2013 Nissan Altima traveling westbound on Interstate 10, in El Paso, El Paso County, Texas. Defendant Chacon Chavez was driving a 2019 Ram 3500, operated on behalf of Defendant Tierney and/or Defendant Groundbreakers, traveling west on Interstate 10, behind Plaintiff’s vehicle. Plaintiff came to a stop due to traffic in front of him when Defendant Chacon Chavez, who failed to see traffic was slowing down, suddenly, violently, and without warning collided with the rear-end of Plaintiff’s vehicle. As a result of the collision, Plaintiff suffered severe and debilitating injuries.

IV.
AGENCY AND RESPONDEAT SUPERIOR

8. At the time of the collision and the occurrence giving rise to this cause of action, Defendant Chacon Chavez was an employee of Defendant Tierney and/or Defendant Groundbreakers.

9. At all times material hereto, Defendant Chacon Chavez was acting as an employee of Defendant Tierney and/or Defendant Groundbreakers and was within the course and scope of his employment or official duties for Defendant Tierney and/or Defendant Groundbreakers in furtherance of the duties of his office or employment for Defendant Tierney and/or Defendant Groundbreakers.

10. Defendant Tierney and/or Defendant Groundbreakers, as the employer, is responsible for the negligent acts or omissions of Defendant Chacon Chavez under the principles of respondeat superior.

VI.
NEGLIGENCE

11. Plaintiff would show that, on the occasion in question, Defendants owed a duty to conduct themselves in a manner consistent with the traffic laws of the State of Texas and the United States and to act as a reasonably prudent person and/or entity would act.

12. Defendant Chacon Chavez breached his duties to Plaintiff and acted in a manner that was negligent or negligent per se by engaging in the following wrongful conduct:

- a. Failing to keep such a proper lookout as a person exercising ordinary prudence would have kept under the same or similar circumstances;
- b. Failing to control his speed;
- c. Failing to take timely or proper evasive action to avoid the collision in question;
- d. Following too closely;
- e. Failing to timely apply his brakes;

- d. Failing to pay proper attention; and
- e. Failing to control the subject vehicle so that a collision would not occur.

12. Defendant Tierney and/or Defendant Groundbreakers had a duty to exercise ordinary care to hire, qualify, train, and supervise Defendant Chacon Chavez with respect to ensuring that he was and would continue to be a safe driver with knowledge of the matters necessary for the proper operation of the vehicle that he controlled.

13. Defendant Tierney and/or Defendant Groundbreakers breached its duty because it knew or should have known that Defendant Chacon Chavez was not a capable, qualified, and knowledgeable driver.

14. Defendant Tierney and/or Defendant Groundbreakers breached its duty because it failed to provide the necessary training for Defendant Chacon Chavez to operate the vehicle in a safe manner and in conformity with the requirements of the law.

15. Defendant Tierney and/or Defendant Groundbreakers breached his duty because it failed to supervise Defendant Chacon Chavez to ensure that he operated his vehicle in a safe manner and could accomplish his work assignments in a safe manner.

16. Each of Defendants' acts and omissions, singularly or in combination with others, constituted negligence and/or negligence per se that proximately and substantially caused the occurrence made the basis of this action, and the personal injuries and damages sustained by Plaintiff.

17. Plaintiff would show that, as a proximate cause of Defendants' negligence, as described herein, Plaintiff has sustained damages far in excess of the minimum jurisdictional limits of this Court.

VII.
DAMAGES

18. As a direct and proximate result of Defendants' negligence, Plaintiff suffered severe personal injuries, pain, suffering, mental anguish, disability, impairment, and disfigurement, and incurred reasonable and necessary medical expenses for the care and relief of his injuries. For a long time to come, if not for the rest of his life, Plaintiff will continue to suffer physical injuries, physical impairment, disfigurement, pain and suffering, and mental anguish. Additionally, as a result of the incident, Plaintiff will incur reasonable and necessary medical expenses in the future. Plaintiff now sues for all of these damages in an amount that exceeds the minimum jurisdictional limit of this Court.

19. Plaintiff is entitled to recover pre-judgment and post-judgment interest as allowed by law.

X.
REQUEST FOR JURY TRIAL

20. Plaintiff respectfully requests a trial by jury and has paid the jury fee.

PRAYER

WHEREFORE, Plaintiff requests that Defendants be cited to appear and answer herein and that on final trial, Plaintiff have judgment against Defendants for:

- a. All medical expenses in the past and future;
- b. Mental anguish in the past and future;
- c. Physical pain in the past and future;
- d. Physical impairment in the past and future;
- e. Disfigurement in the past and future;
- f. Pre- and post-judgment interest as allowed by law;

- g. Costs of suit; and
- h. Such other and further relief to which Plaintiff may be justly entitled.

Respectfully Submitted,

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ATTORNEYS FOR PLAINTIFF

CERTIFICATE OF SERVICE

I certify that on May 18, 2023, a true and correct copy of the foregoing document was electronically filed on the CM/ECF system, which will automatically serve a Notice of Electronic Filing, on the following attorney in charge for Defendants:

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NATHAN TIERNEY, AND

GROUNDBREAKERS, LLC

/s/ Paula A. Wyatt

Paula A. Wyatt